

VG-705-2026-118220

Hidalgo County
Arturo Guajardo Jr.
County Clerk
Edinburg, Texas 78540

Document No: 118220

Billable Pages: 2

Recorded On: August 04, 2026 12:06 PM

Number of Pages: 3

NOTICE OF FORECLOSURE

*****Examined and Charged as Follows*****

Total Recording: \$ 22.00

*****THIS PAGE IS PART OF THE DOCUMENT*****

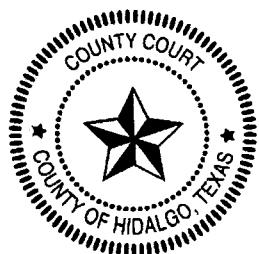
Any provision herein which restricts the Sale, Rental, or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information:

Document No: 118220
Receipt No: 20260804000180
Recorded On: August 04, 2026 12:06 PM
Deputy Clerk: Marc Silva
Station: CC-ED-KF1015

Record and Return To:

The Tippit Law Firm, LLP
820 W. Nolana, Suite C
Original Returned to Customer
McAllen TX 78504



STATE OF TEXAS
COUNTY OF HIDALGO

I hereby certify that this Instrument was FILED in the File Number sequence on the date/time
printed hereon, and was duly RECORDED in the Official Records of Hidalgo County, Texas.

Arturo Guajardo Jr.
County Clerk
Hidalgo County, Texas

Notice of Substitute Trustee's Sale

Date: **August 3, 2026**

Substitute Trustee: **SARA L. TIPPIT, JOHN L. TIPPIT, III or ANGELA PEREZ**

Substitute Trustee's Address: **820 W. Nolana, Suite C, McAllen, Hidalgo County, Texas 78504**

Note Holder: **TOP FRUIT, INC., a Texas corporation**

Note: **THIRTY-FOUR THOUSAND SEVEN HUNDRED AND 00/100THS DOLLARS (\$34,700.00)**

Deed of Trust

Date: **May 17, 2012**

Grantor: **ROSA H. HERNANDEZ and LILIANA PEREZ**

Mortgagee: **TOP FRUIT, INC., a Texas corporation**

Recording information: **Deed of Trust (the "Deed of Trust") dated May 17, 2012, executed by Rosa H. Hernandez and Liliana Perez ("Borrower") to Robert Geissler, Trustee for the benefit of Top Fruit, Inc., a Texas corporation covering certain property (the "Mortgaged Property") located in Hidalgo County, Texas as described therein and filed for record in the Office of the County Clerk of Hidalgo County, Texas under Document Number 2310814 in the Official Records. The Deed of Trust secures, among other indebtedness, the Real Estate Lien Note (the "Note") dated May 17, 2012, in the face principal amount of \$34,700.00, executed by Borrower payable to the order of Top Fruit, Inc., a Texas corporation, as the same may have been renewed, extended and modified from time to time. An Appointment naming Sara L. Tippit, John L. Tippit, III or Angela Perez, as Substitute Trustee has been filed for record in the Office of the County Clerk of Hidalgo County, Texas under Document Number 2738072 in the Official Records.**

Property: **Lot(s) 1, Elite Village Subdivision Phase II, as shown by the map or plat thereof filed for record in the Office of the County Clerk of Hidalgo County, Texas under Clerk's File Number 2239313.**

County: **HIDALGO**

Date of Sale (first Tuesday of month): **September 1, 2026**

Time of Sale: **The sale will begin no earlier than 1:00 p.m. and no later than three hours after that time.**

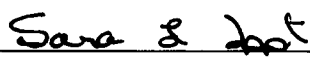
Place of Sale: **The Administration Building located at 2802 S. Bus. Hwy. 281, Edinburg, Texas 78539 (under the canopy located on the west side of the building).**

ASSERT AND PROTECT YOUR RIGHTS AS A MEMBER OF THE ARMED FORCES OF THE UNITED STATES. IF YOU ARE OR YOUR SPOUSE IS SERVING ON ACTIVE MILITARY DUTY, INCLUDING ACTIVE MILITARY DUTY AS A MEMBER OF THE TEXAS NATIONAL GUARD OR THE NATIONAL GUARD OF ANOTHER STATE OR AS A MEMBER OF A RESERVE COMPONENT OF THE ARMED FORCES OF THE UNITED STATES, PLEASE SEND WRITTEN NOTICE OF THE ACTIVE DUTY MILITARY SERVICE TO THE SENDER OF THIS NOTICE IMMEDIATELY.

Mortgagee has appointed **SARA L. TIPPIT or JOHN L. TIPPIT, III**, as Substitute Trustee under an Appointment of Substitute Trustee as allowed under the Deed of Trust. Mortgagee has instructed Substitute Trustee to offer the Property for sale toward the satisfaction of the Note.

THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.

Notice is given that on the Date of Sale, Substitute Trustees will offer the Property for sale at public auction at the Place of Sale, to the highest bidder for cash, "AS IS." THERE WILL BE NO WARRANTY RELATING TO TITLE, POSSESSION, QUIET ENJOYMENT, OR THE LIKE FOR THE PROPERTY IN THIS DISPOSITION. The sale will begin at the Time of Sale or not later than three hours thereafter. This sale will be conducted subject to the right of rescission contained in section 51.016 of the Texas Property Code.



SARA L. TIPPIT, Substitute Trustee